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Faisal D'Souza
NCO, 2415 Eisenhower Avenue
Alexandria, VA 22314, USA

RE: Response to Request for Information: AI Action Plan 2025-02305 (90 FR 9088)

I. Introduction

HTTP (Hispanic Tech and Telecommunications Partnership) appreciates the opportunity to submit this response regarding the development of the AI Action Plan.¹ As an organization dedicated to promoting the advancement of Hispanic Americans in the digital economy, we believe that AI innovation coupled with the appropriate safety mechanisms can create significant opportunities for our communities while fostering American leadership.

Our response focuses primarily on AI's impact on workforce development and business practices, with particular attention to the effects on Hispanic populations in the United States. We offer concrete policy recommendations that bolster American AI leadership, empower citizens with digital skills, and promote economic opportunity for all Americans. Now is the time to invest in workforce development and upskilling – as the industry booms it will need support from more workers. In addition to an increase in the overall quality of life for all Americans, workforce development initiatives will increase our communities' contributions to the growing AI industry. Furthermore as discussed below, Hispanic perspectives must be included for the development of a fair and transparent AI ecosystem. AI policies must also safeguard civil liberties, ensuring that automated decision-making does not undermine fundamental rights such as privacy. Lastly, we underscore the value of Hispanic contributions to AI conversations and how their perspectives drive the future American economy and society.

II. AI and Workforce Development

Current Landscape and Challenges

Hispanic Americans represent approximately 19% of the U.S. workforce but remain significantly underrepresented in the technology sector, comprising only 8% of computing occupations.² As AI transforms the labor market, there is both tremendous opportunity and significant market disruption for Hispanic workers:

¹ This document is approved for public dissemination. The document contains no business-proprietary or confidential information. Document contents may be reused by the government in developing the AI Action Plan and associated documents without attribution.

² EEOC Says High-Tech Workforce Continues to Lack Diversity, Reuters (Sept. 11, 2024), <https://www.reuters.com/legal/government/eeoc-says-high-tech-workforce-continues-lack-diversity-2024-09-11>.

1. **Market Evolution:** Hispanic workers are concentrated in sectors experiencing rapid technological change, including food service, construction, manufacturing, and transportation. According to recent market analyses, approximately 36% of Hispanic workers are in jobs likely to be transformed by automation.³
2. **Skills Opportunity:** There exists a significant opportunity to develop AI literacy and technical education in predominantly Hispanic communities, unlocking high-value, high-growth, AI-related careers.⁴
3. **Geographic Considerations:** Hispanic populations are concentrated in regions that may experience different patterns of AI adoption and job creation, requiring locally-tailored approaches rather than one-size-fits-all programs.⁵

Policy Recommendations

1. **Establish a Private-Public AI Skills Partnership:** Promote skills development through competitive grants to Hispanic-Serving Institutions (HSIs), community colleges, research institutions, and private workforce development organizations. This partnership should:
 - Leverage private sector expertise in developing AI literacy programs.
 - Create pathways from non-technical fields into AI-adjacent careers.
 - Support entrepreneurial development of Spanish-language technical education resources.
2. **Implement a Business-Led AI Apprenticeship Initiative:** Establish a national AI apprenticeship program with tax incentives for employers. These programs allow all Americans, including Hispanic-Americans, the opportunity for lifelong learning and skills development for a stronger economy. This initiative should:
 - Provide tax relief for small businesses that hire new market entrants, such as Hispanic apprentices.
 - Establish government certifications spanning across industries that empower apprentices with credentials to contribute to the growing AI sector.
3. **Support Regional Innovation Hubs:** Enable federally-supported but locally-led centers in areas with high Hispanic populations to facilitate AI adoption, workforce transition, and community-specific solutions. These hubs should:
 - Offer technical assistance to Hispanic-owned small businesses.
 - Conduct research on region-specific AI opportunities and competitive advantages

³ McKinsey Global Institute. (2023). "The Future of Work in America: People and Places, Today and Tomorrow." <https://www.mckinsey.com/featured-insights/future-of-work/the-future-of-work-in-america-people-and-places-today-and-tomorrow>

⁴ Manuel Valdes, Automation's Impact on Latino Workforce, AP News (Oct. 4, 2023), <https://apnews.com/article/automations-impact-latino-workforce-a7ff825cc2fa0eb8174eafa5e4029cf9>.

⁵ Lisa Pinheiro et al., Measuring AI Uptake in the Workplace, Bd. of Governors of the Fed. Rsrv. Sys. (Feb. 5, 2024), <https://www.federalreserve.gov/econres/notes/feds-notes/measuring-ai-uptake-in-the-workplace-20240205.html>.

III. AI and Business Practice Impacts

Current Landscape and Challenges

Hispanic-owned businesses face unique market considerations in the AI era:

1. **Market Access:** Hispanic entrepreneurs often have less access to AI tools, technical expertise, and capital needed to implement AI solutions, creating potential competitive challenges.⁶
2. **Language and Cultural Considerations:** Many Hispanic-owned businesses serve bilingual or Spanish-dominant communities, requiring AI solutions that effectively address language and cultural nuances.⁷
3. **Growth Opportunity:** AI offers significant growth potential for the approximately 4.65 million Hispanic-owned businesses in the United States.⁸ The revolutionary tools provided by AI will enhance economic development in Hispanic communities.

Policy Recommendations

1. **Establish an AI Business Tax Credit Program:** Create a dedicated program focused on AI implementation for small businesses, with specific outreach to Hispanic entrepreneurs. This program should:
 - Provide tax credits for AI investment and implementation.
 - Minimize paperwork burdens for participating businesses.
 - Create networks connecting Hispanic entrepreneurs with private sector AI expertise.
2. **Support multilingual AI Resources:** Encourage the development of Spanish-language AI supplemental resources to ensure Hispanic businesses can effectively educate, create, embrace, and benefit from AI technologies:
 - Incentivize private sector development of bilingual AI implementation guides.
 - Support public-private partnerships for developing Spanish language datasets.
 - Establish voluntary standards for culturally responsive AI systems.

⁶ Michigan State University Julian Samora Research Institute. (2024). "The Use of Artificial Intelligence by Latino Firms." <https://jsri.msu.edu/publications/nexo/vol-xxvii/3162/3168>

⁷ *Id.*

⁸ McKinsey and Company. (2024). "The economic state of Latinos in America: Building up small businesses." <https://www.mckinsey.com/featured-insights/diversity-and-inclusion/the-economic-state-of-latinos-in-the-us>

IV. The Development of a Reliable and Trustworthy AI Ecosystem

AI Literacy

We support ensuring that AI system operations and outcomes are sufficiently understandable by subject matter experts and everyday users.⁹ Increasing AI literacy will lead to greater adoption and AI value creation by the Hispanic community and a quality of life improvement for all Americans. For Hispanic communities, this means:

1. **Promote Bilingual Initiatives:** Encourage deployed AI systems to provide explanations in both English and Spanish so that all users understand the AI output.
2. **Cultural Context Awareness:** Support the development of AI systems that account for cultural contexts by centering the lived experiences of the Hispanic community.
3. **Educational Opportunity:** Support private-sector and community-based programs to enhance AI literacy among Hispanic communities, focusing on understanding how AI systems create economic opportunity.

Trustworthy AI

Fostering public trust in the research and development of AI systems will lead to greater adoption of AI and thus bolster American AI leadership. With a buying power of \$2.7 trillion, the Hispanic communities' adoption of AI is critical for the advancement of AI in the United States.¹⁰ We urge ensuring that AI systems are well documented and that inputs and outputs of particular AI systems are traceable while minimizing paperwork burdens.¹¹ For Hispanic communities, this requires:

1. **Balanced Documentation:** Encourage appropriate documentation and transparency of training data for government-procured AI systems without imposing excessive compliance costs or undue burden on consumers.
2. **Language Processing Transparency:** Support the traceability of how AI systems process Spanish language inputs.
3. **Accessible Toolsets:** Encourage the development of user-friendly tracing tools available in Spanish and accessible to Hispanic business owners and consumers.
4. **Comprehensive Safety Testing:** Encourage extensive user testing with a wide segment of user populations, including Hispanic users, during safety evaluation of AI systems.

⁹ NIST. (2023). "Artificial Intelligence Risk Management Framework."
<https://www.nist.gov/itl/ai-risk-management-framework>

¹⁰ Statista. (2024). "Buying power of Hispanic consumers in the United States from 1990 to 2021, with a forecast to 2026." <https://www.statista.com/statistics/251438/hispanics-buying-power-in-the-us/>

¹¹ Natalia Díaz-Rodríguez, "Connecting the dots in trustworthy artificial intelligence: From AI principles, ethics, and key requirements to responsible AI systems and regulation Information Fusion" (2023).
<https://www.sciencedirect.com/science/article/pii/S1566253523002129>

5. **Data Confidentiality Protections and Ownership:** To have reliable, robust, trustworthy, and secure AI systems; common principles of data protection must be put into place. Industry leaders, government, and AI developers should collaborate to develop safe and secure AI, ensuring that users are confident that their data is safe and secure when interacting with those systems. Upholding personal data ownership rights not only protects Americans at home and abroad but also reinforces national security as a top priority.
6. **Risk-Based Safety Frameworks:** Develop pragmatic safety assessment frameworks that consider potential risks while enabling rapid innovation.
7. **Surveillance:** We strongly support protecting the constitutional rights of Americans and ensuring that AI systems respect American values of privacy and civil liberties without imposing unnecessary regulatory burdens. AI surveillance should be used to enhance public safety without infringing on constitutional rights. Industry leaders and the government should prioritize transparency and accountability to prevent overreach to protect the civil liberties of all communities, including Hispanic Americans.

V. Hispanic Viewpoints in AI Conversations Drive the American Economy and Society

AI Safety Standards and American Innovation

We endorse fully funding the AI Safety Institute to ensure it continues to promote American innovation and supports US leadership in international standards for the safe deployment of AI systems.¹² These efforts should include Hispanic perspectives by:

1. **Incorporating Trustworthy Safety Approaches:** Ensure AI safety standards are relevant to Hispanic communities without imposing one-size-fits-all solutions.
2. **Community-Specific Risk Assessment:** Develop voluntary frameworks for assessing AI safety risks that may affect Hispanic populations.
3. **Embracing Innovation and Opportunity:** Ensure that AI safety frameworks incorporate a cross-section of American perspectives, including those from Hispanic communities, while prioritizing innovation and economic opportunity.
4. **Including Hispanic Business Representation:** Ensure Hispanic business leaders are represented in AI governance forums.

Bolstering American Values With AI Design and Innovation

We advocate for clearly defined human roles and responsibilities in the design, development, acquisition, and use of AI. For Hispanic communities, this means:

¹² Brookings. (2024). "Balancing market innovation incentives and regulation in AI: Challenges and opportunities." <https://www.brookings.edu/articles/balancing-market-innovation-incentives-and-regulation-in-ai-challenges-and-opportunities/>

1. **Competent Design Processes:** Ensure AI development incorporates Hispanic cultural contexts to capitalize on the great buying power of the Hispanic community.
2. **Accessible Control Mechanisms:** Encourage the development of human control mechanisms for AI systems that are accessible to Spanish-speakers and reflect user expectations without imposing burdensome requirements.
3. **Representative Design Teams:** Promote Hispanic representation in AI development to ensure that AI systems promote economic opportunity for all.

VI. AI's Broader Effects on the Hispanic Community

Current Landscape and Opportunities

Beyond workforce and business impacts, AI will create new opportunities for Hispanic communities in various ways:

1. **Quality of Life Improvements:** Hispanic Americans can benefit from better AI systems that minimize unintended partiality in critical systems affecting access to credit, housing, healthcare, and surveillance systems.¹³
2. **Digital Opportunity:** As approximately 15% of Hispanic households gain internet access, there is significant opportunity to ensure they can fully participate in the AI economy.¹⁴
3. **Language Opportunities and Innovation:** Multilingual market-driven innovation in AI systems can dramatically improve service to Spanish-dominant individuals, creating new business opportunities for all while breaking barriers within AI Innovation.¹⁵

Policy Recommendations

1. **Fund Robust AI Research:** Allocate research funding for studies on AI's potential to create opportunity for all communities, including Hispanic communities:
 - Support researchers and institutions based on excellence and innovation.
 - Prioritize projects addressing real-world AI challenges.
 - Create AI testbeds in areas with demonstrated need and opportunity.
 - Foster an entrepreneurial spirit among researchers to create an AI ecosystem that empowers all Americans.

¹³ Harvard Business School. (2024). "From Spanglish to Quinceañera Dresses: Making the Case for Hispanic Representation in AI Development." <https://www.hbs.edu/bigs/hispanic-representation-in-ai-development>

¹⁴ Pew Research Center. (2023). "Internet/Broadband Fact Sheet." <https://www.pewresearch.org/internet/fact-sheet/internet-broadband/>

¹⁵ Harvard Business School. (2024). "From Spanglish to Quinceañera Dresses: Making the Case for Hispanic Representation in AI Development." <https://www.hbs.edu/bigs/hispanic-representation-in-ai-development>

2. **Implement Common-Sense AI Standards:** Develop federal standards for AI systems used in public services that balance performance across languages without imposing excessive costs:
 - Support reasonable testing methodologies for federal AI systems.
 - Establish achievable performance standards for multilingual AI applications.
 - Create market incentives for development of Spanish-language AI capabilities.
3. **Investment in Digital Empowerment:** Invest in digital skilling, vocational training, and apprenticeships to strengthen a workforce that can develop, deploy, and oversee AI systems.
 - Empower individuals and businesses by expanding AI education and training programs, ensuring that all Americans—including Hispanic communities—have the tools to succeed in the modern economy.
 - Invest in regional technology ecosystems that can enhance, sustain, and create a digital future. This will continue to create lifelong learning that is essential to AI innovation and empowerment for all ages and all Americans.

VII. Conclusion

The development of the AI Action Plan represents a critical opportunity to ensure that Hispanic Americans fully participate in and benefit from the AI revolution. By implementing policies focused on workforce development, business practices, and community impact, the Administration can help ensure that AI advances American leadership while creating opportunity for all Americans, including the nation's 64 million Hispanic residents.

HTTP stands ready to collaborate with the Administration on developing and implementing these recommendations. We appreciate the opportunity to contribute to this important initiative and welcome further engagement as the AI Action Plan develops.

Respectfully submitted,

JudeAnne Heath, Executive Director
Alexa Rivas, Law and Policy Fellow
Chris Rodriguez, Policy Advisor
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